

10. 9:00 AM CASE NUMBER: C25-00251

CASE NAME: INTREPID INVESTORS, LLC VS. WEI SHI

HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT

FILED BY: INTREPID INVESTORS, LLC

TENTATIVE RULING:

Summary: Plaintiff Intrepid Investors Inc's Motion for Leave to file First Amended Complaint is **granted** as unopposed. The Court will execute the proposed order lodged on February 26, 2026. Plaintiff is ordered to file and serve the First Amended Complaint no later than ten (10) days from the date of the hearing. No appearance is required at the hearing on July 8, 2026.

11. 9:00 AM CASE NUMBER: C25-01690

CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH

HEARING ON MOTION IN RE: ORDER DESIGNATING CASE COMPLEX UNDER CRC 3.400

FILED BY: CITY OF ANTIOCH

TENTATIVE RULING:

ORDER OF RECUSAL AND REASSIGNMENT

Currently set for hearing on July 8, 2026, is Defendant City of Antioch's Motion for an Order designating this case as complex under California Rule of Court 3.400. Having reviewed the filings and record herein, the Court makes the following findings and orders:

FINDINGS

This matter is currently assigned to Judge Leonard Marquez, Department 34, for all purposes. No hearings have been conducted in this matter before Department 16, the Honorable Benjamin T. Reyes II.

As supervising judge of the civil division, Judge Reyes is assigned to hear all motions to designate cases as complex under Rule 3.400. Upon review of this motion, the Court notes that Defendant and Moving Party, City of Antioch, is represented by Meyers Nave Riback Silver & Wilson, A Professional Corporation ("Meyers Nave" or "Firm"), and by Judge Reyes' former law partner, Douglas M. McManamon, Esq. (the term "partner" being used herein as a term of art, as Meyers Nave is a professional corporation).

Judge Reyes makes the following disclosures and, pursuant to Code of Civil Procedure section 170.3, subdivision (a), recuses himself as follows:

Prior to his appointment to the Superior Court in 2017, Judge Reyes was an equity shareholder of Meyers Nave. Since June 2025, Judge Reyes has been a participant in the Firm's non-qualified deferred compensation and retirement plan. Judge Reyes receives annual distributions from the Firm's deferred compensation plan, which constitutes a financial interest pursuant to Code of Civil Procedure section 170.5, subdivisions (a) and (b).

Mr. McManamon, also Judge Reyes' former law partner, is appearing as counsel for the Moving Party.

Under Code of Civil Procedure section 170.1, subdivision (a)(6)(A)(iii), such a relationship may lead a reasonable litigant to entertain doubt regarding the judge's ability to remain impartial.

In light of these disclosures and in accordance with applicable law, Judge Reyes recuses himself from presiding over any hearings in this case to preserve the integrity of the judicial process.

ORDER

NOW, THEREFORE, IT IS HEREBY ORDERED THAT:

1. The Honorable Benjamin T. Reyes II recuses himself from presiding over the above-captioned motion pursuant to Code of Civil Procedure section 170.3;
2. This motion is reassigned to the Honorable Leonard Marquez, Department 34, for all purposes;
3. This motion will be heard in Department 34 on August 3, 2026, at 9:00 a.m. The hearing previously scheduled for July 8, 2026, in Department 16 is vacated. No appearance is required for the vacated hearing date;
4. The parties shall receive notice of the new hearing date from the Court Clerk's Office; and
5. Moving party shall also give notice of the continuance to Plaintiff.

IT IS SO ORDERED.

12. 9:00 AM CASE NUMBER: C25-01821
CASE NAME: JAMES BIDWELL VS. DOROTHY GALLOWAY
HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL AS TO JAMES BIDWELL
FILED BY: BIDWELL, JAMES

TENTATIVE RULING:

Summary

Withdrawing Counsel Gunter Mihaescu, attorney for Plaintiff James Bidwell, filed a Motion to be Relieved as Counsel. Good cause appearing, the motion is **granted**. The Court further orders that this action be dismissed without prejudice as forth herein.

Background

In this action, Plaintiff James Bidwell alleges that on or about June 29, 2023, Defendant Dorothy Galloway requested Plaintiff's assistance with sanitation and cleaning, during which Plaintiff alleges he was exposed to Shigella bacterium, resulting in illness.

On May 15, 2026, Withdrawing Counsel filed a Motion to be Relieved as Counsel. Withdrawing Counsel supports the motion with a declaration stating there has been a breakdown in